

CARLS VS. MCCARTY, ET AL.

CASE NUMBER: 23CV-0203298

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls' claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor's parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor's Guardian ad Litem on October 5, 2023. The matter was originally on calendared for hearing on June 8, 2026. Due to several defects, the Court continued the hearing to today and ordered that Petitioner correct the issues by filing an Amended Petition no later than July 27, 2026. The Court further ordered that if Petitioner could not comply with the deadline, a status statement must be filed by July 27, 2026 informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. Nothing has been filed since the last hearing on June 8, 2026.

As stated on June 8, 2026, California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor's parent, without bond. This option is only available if the value of the minor's estate, including the money to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.
- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.

- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. **An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

CONNEXUS CREDIT UNION VS. GEOUGE, ET AL.

CASE NUMBER: 25CVG-01931

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause issued on June 24, 2026 to Plaintiff Connexus Credit Union. and Counsel IDEA Law Group, P.C. for failure to timely obtain a default judgment and failure to timely prosecute. Default was entered against Defendant Jonathan Lynn Geouge on July 1, 2026, however, nothing has been filed as to Defendant Cody Jason Murphy-Mummy. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of service on Defendant Cody Jason Murphy-Mummy. If the matter is not at issue by the next hearing, the Court intends to issue an Order to Show Cause Re: Sanctions.

DOE VS. SCHENK, MFC, RAS

CASE NUMBER: 26CV-0210220

Tentative Ruling on Demurrer: Defendant, Daniel Schenk, demurs to the Second Cause of Action for Intentional Infliction of Emotional Distress, the Fourth Cause of Action for Negligence, and the Fifth Cause of Action for Fraud and Deceit alleged in the Complaint filed by Plaintiff on March 25, 2026, on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Bryan Malone provides evidence of sufficient meet and confer efforts.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed on March 25, 2026, and of the fact that Defendant is a licensed marriage and family therapist with the California Board of Behavioral Sciences. The request is granted pursuant to Evid. Code §§ 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Second Cause of Action. Defendant demurs to the cause of action for intentional infliction of emotional distress on the grounds that the Complaint fails to allege facts that Defendant’s conduct was so extreme and outrageous as to warrant a claim. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of